[Resilience X]

Grievance and Escalation Procedure

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1.0 Our Commitment to a Fair Workplace

1.1 Purpose and Philosophy

At [Resilience X], we are dedicated to fostering a positive, respectful, and productive work environment where every employee feels valued and heard. This Grievance and Escalation Procedure is designed to provide a clear, fair, and consistent framework for raising and resolving workplace concerns[1].

Our philosophy is that open communication and early resolution are the most effective ways to address issues. We believe that by providing a structured and transparent process, we can address conflicts constructively, reinforce our company values, and ensure that all employees are treated

with dignity and respect[1]. This procedure is a tool to help us uphold our commitment to a healthy workplace culture.

1.2 Scope of This Policy

This policy applies to all regular full-time and part-time employees of [Resilience X]. It covers any concern, problem, or complaint that an employee may have regarding their work, the work environment, or their employment relationship[1]. This includes, but is not limited to, issues related to working conditions, treatment by managers or colleagues, and the application of company policies[2].

1.3 Core Principles

This procedure is founded on four essential principles that guide our approach at every stage[32]:

1.3.1 Confidentiality

All grievances will be handled with the utmost discretion. Information will only be shared with those who have a legitimate need to know in order to investigate and resolve the concern.

1.3.2 Non-Retaliation

[Resilience X] has a zero-tolerance policy for retaliation. No employee will face adverse action, harassment, or discrimination for raising a grievance in good faith or for participating in an investigation. Any act of retaliation is a serious violation of company policy and will result in disciplinary action, up to and including termination[32].

1.3.3 Impartiality and Fairness

Every grievance will be investigated and reviewed objectively and impartially. Decisions will be based on a thorough and fair assessment of the facts. All parties involved will have an opportunity to present their side of the story.

1.3.4 Timeliness

We are committed to addressing all concerns promptly. This policy outlines specific timelines for each stage of the process to ensure that grievances are resolved without unnecessary delay[2].

1.4 What is a Grievance?

A grievance is a formal complaint raised by an employee concerning a work-related issue that they believe is unfair, unjust, or in violation of company policy or legal standards[2]. Examples of issues that may form the basis of a grievance include:

- Perceived unfair or inequitable treatment.
- Bullying, harassment, or discrimination.
- Concerns about health and safety in the workplace[3].
- Disputes over the interpretation or application of HR policies (e.g., leave, work hours).
- Violations of the company's Code of Conduct.

1.5 What is Not Covered by This Procedure?

This procedure is not intended to address every type of workplace disagreement. The following issues are typically handled through separate, specific processes:

- **Disciplinary Action: Appeals against formal disciplinary warnings or actions.**
- **Termination of Employment: Decisions related to the termination of employment.**
- **Compensation Decisions: Issues related to salary, bonus amounts, or equity awards, which are managed through the annual compensation review process.**
- **Performance Feedback: Disagreements with performance ratings or feedback received during a performance review.**
- **Whistleblowing: Reports of illegal activity, financial malpractice, or serious dangers to public health, which should be raised under the company's Whistleblower Policy.**

If you are unsure which policy applies to your concern, please consult with the HR department for guidance.

2.0 Roles and Responsibilities

A successful grievance process relies on the active and responsible participation of all parties involved.

2.1 The Employee

- **To attempt, where appropriate, to resolve concerns informally at the earliest opportunity.**
- **To raise formal grievances in a timely and factual manner, providing all relevant information.**
- **To cooperate fully with any investigation.**
- **To maintain confidentiality throughout the process.**

2.2 The Manager

- **To foster an environment where employees feel comfortable raising concerns.**
- **To listen actively and take all concerns seriously.**
- **To make genuine efforts to resolve issues informally and promptly2.**
- **To participate constructively in formal investigations when required.**
- **To uphold the principles of confidentiality and non-retaliation.**

2.3 The Human Resources (HR) Department

- **To act as an impartial steward of the grievance procedure1.**
- **To provide advice and support to both employees and managers throughout the process.**
- **To ensure all formal grievances are properly documented, investigated, and resolved in accordance with this policy.**
- **To appoint trained and impartial investigators.**
- **To maintain secure records of all grievance proceedings4.**

2.4 The Grievance Committee

- **A formal Grievance Committee may be convened to hear appeals[5].**
- **The Committee typically consists of a senior HR leader, a senior leader from a neutral department, and another impartial manager.**
- **The Committee's role is to provide a final, objective review of the grievance and the initial decision.**

3.0 Informal Grievance Resolution

3.1 The Value of Informal Resolution

We strongly encourage employees to try and resolve concerns informally before initiating a formal grievance[6]. Many workplace issues arise from simple misunderstandings or miscommunications and can often be resolved quickly and effectively through direct conversation. An informal approach can help preserve working relationships and find mutually agreeable solutions without the need for a lengthy formal process.

3.2 Step-by-Step Informal Process

1. **Reflect and Prepare: Before approaching anyone, take a moment to clearly identify the issue. What specifically is the problem? What is your desired outcome?**
2. **Speak with Your Manager: Your direct manager is usually the best first point of contact. Schedule a private meeting to discuss your concerns openly and professionally.**
3. **Alternative Contact: If you are not comfortable speaking with your manager, or if your concern is about your manager, you can approach their manager or an HR Business Partner for an informal discussion.**
4. **Discussion and Agreement: The goal of the informal discussion is to reach a shared understanding and agree on a path forward. This could involve clarifying expectations, changing a process, or simply having a constructive dialogue.**

3.3 The Role of Mediation

In some cases, a facilitated conversation with a neutral third party can be helpful. HR can act as an impartial mediator to help employees and managers discuss their issues and find common ground. Mediation is a voluntary process aimed at achieving a mutually acceptable resolution.

3.4 Case Example: Successful Informal Resolution

- **Scenario: Alex, a graphic designer, feels that his colleague, Ben, is consistently taking credit for his ideas in team meetings. This is causing friction and demotivating Alex.**
- **Informal Action:**
    1. **Instead of immediately filing a complaint, Alex schedules a one-on-one meeting with his manager, Sarah.**
    2. **He calmly explains the situation, providing specific examples of recent meetings where this has happened. He states that his desired outcome is fair recognition for his contributions.**

3. Sarah listens to Alex's concerns and validates his feelings. She agrees to observe the team dynamics more closely in the next few meetings.
4. Sarah also has a separate, general coaching conversation with Ben about teamwork and the importance of acknowledging all contributors.

- Outcome: In subsequent meetings, Sarah makes a point to ask for input from all team members, and Ben becomes more mindful of giving credit to his colleagues. Alex feels heard and respected, and the issue is resolved without damaging the team's working relationship.

4.0 Formal Grievance Procedure

4.1 When to Initiate a Formal Grievance

A formal grievance should be initiated when:

- An attempt at informal resolution has been unsuccessful.
- The nature of the grievance is too serious for an informal approach (e.g., allegations of harassment, discrimination, or a significant safety violation).
- The grievance is against your direct manager, and you are not comfortable addressing it with them informally[7].

4.2 Step 1: Filing a Formal Grievance

To begin the formal process, the employee must submit a written grievance to the HR department using the official Grievance Form (see Section 10.0)[8].
The written submission should be clear and concise and include the following information:

- Your name and department.
- A detailed description of the grievance, including what happened.
- Relevant dates, times, and locations[8].
- The names of any other individuals involved or any witnesses.
- Any supporting documentation or evidence.
- A description of any steps you have already taken to resolve the issue informally.
- Your desired outcome or resolution[7].

4.3 Step 2: Acknowledgment and Assessment

HR will acknowledge receipt of the formal grievance in writing within two (2) working days[8]. HR will then conduct an initial assessment to understand the nature of the complaint and determine the most appropriate course of action, including appointing an impartial investigator.

4.4 Step 3: Formal Investigation

The investigator will conduct a thorough and objective investigation into the grievance[4]. This process may include:

- Interviewing the employee who filed the grievance (the grievant).

- Interviewing the person(s) named in the grievance (the respondent).
- Interviewing any relevant witnesses.
- Reviewing relevant documents, such as emails, company records, or policies.
  All interviews will be conducted privately, and all individuals involved will be reminded of the company's policies on confidentiality and non-retaliation.

4.5 Step 4: Grievance Meeting

After the investigation is complete, a formal grievance meeting will be scheduled. The meeting will be chaired by a manager not previously involved in the case, often accompanied by an HR representative.

- The purpose of the meeting is for the grievant to explain their case and for the chairperson to ask questions to clarify the facts gathered during the investigation[6].
- The employee has the right to be accompanied at this meeting by a work colleague or a certified trade union representative.

4.6 Step 5: Decision and Notification

Following the grievance meeting, the chairperson will consider all the evidence and make a decision. The decision will be communicated to the employee in writing, typically within five (5) working days of the meeting. The written notification will include:

- A summary of the grievance.
- An outline of the findings of the investigation.
- The final decision.
- Any actions or remedies that will be taken to resolve the grievance[9].
- Information on the employee's right to appeal the decision.

4.7 Timelines for the Formal Process

The following timelines are a guide. Complex cases may require more time, and any delays will be communicated to the employee.

Stage	Target Timeline
Acknowledgment of Grievance	2 working days
Completion of Investigation	15 working days
Grievance Meeting	Within 5 working days of investigation completion
Written Decision	Within 5 working days of the meeting

4.8 Case Example: Handling a Formal Grievance

- Scenario: Maria, an employee in the finance department, believes she was overlooked for a promotion in favor of a less-qualified male colleague. She feels this is a case of gender discrimination. She has lost trust in her manager and decides to file a formal grievance.

- **Formal Process:**
    1. **Filing: Maria completes the Grievance Form, detailing why she believes she was more qualified, citing specific projects and performance metrics. She submits it directly to HR.**
    2. **Acknowledgment: HR acknowledges her submission within two days and assigns a senior HR specialist as the investigator.**
    3. **Investigation: The investigator interviews Maria, her manager, and the colleague who was promoted. She also reviews the performance records, interview notes, and promotion criteria for both candidates.**
    4. **Meeting: A grievance meeting is held, chaired by the Director of Finance. Maria attends with a colleague for support. She presents her case, and the Director asks clarifying questions based on the investigator's report.**
    5. **Decision: The investigation concludes that while both candidates were strong, the selection process lacked clear, objective scoring, leading to the appearance of bias. The Director upholds part of Maria's grievance. The remedy includes a commitment to provide Maria with a detailed development plan for the next promotional opportunity and a mandate for the finance department to implement a more structured and transparent promotion process for the future. The decision is communicated to Maria in writing.**

5.0 Escalation and Appeal Process

5.1 The Right to Appeal

If an employee is not satisfied with the outcome of the formal grievance procedure, they have the right to appeal the decision[1]. An appeal is not a re-investigation of the grievance but a review of the original decision and the process used to reach it.

5.2 Grounds for an Appeal

An appeal may be submitted on one or more of the following grounds:

- **New evidence has come to light that was not available during the original investigation.**
- **There was a significant flaw in the procedure followed, which may have affected the outcome.**
- **The decision or the resulting action (remedy) was not reasonable or proportionate based on the findings.**

5.3 How to Submit an Appeal

An employee wishing to appeal must do so in writing to the HR department within five (5) working days of receiving the formal grievance decision. The written appeal must clearly state the grounds on which the appeal is being made.

5.4 The Appeal Hearing

The appeal will be heard by an Appeal Panel, typically consisting of a senior leader not previously involved (e.g., a Vice President or the CHRO) and the Grievance Committee.

- **The employee will be invited to an appeal hearing to present their case for the appeal.**
- **The employee has the right to be accompanied by a colleague or a union representative.**
- **The Appeal Panel will review the original investigation, the decision, and any new information provided.**

5.5 The Final Decision

The decision of the Appeal Panel is final, and there is no further internal right of appeal. The final decision will be communicated to the employee in writing within five (5) working days of the appeal hearing.

5.6 Case Example: The Appeal Process in Action

- **Scenario: In the case above, Maria is not satisfied with the remedy offered. While she appreciates the commitment to a future development plan, she feels the decision does not adequately address the core issue of bias in the original promotion decision.**
- **Appeal Action:**
    1. **Maria submits a written appeal within five days, stating that the remedy is not proportionate to the findings.**
    2. **An Appeal Panel is convened, chaired by the company's CHRO.**
    3. **At the appeal hearing, Maria argues that the lack of a structured process directly led to a biased outcome and that a development plan alone is not a sufficient remedy.**
    4. **Final Decision: The Appeal Panel reviews the case and agrees that the remedy could be strengthened. In addition to the original actions, the panel's final decision includes a formal, written apology to Maria and mandates that she be automatically included in the interview pool for the next relevant promotion. This decision is final.**

6.0 Handling Specific Types of Grievances

6.1 Grievances Involving a Direct Manager

If a grievance is about an employee's direct manager, the employee is not required to address it with them informally. The formal grievance should be submitted directly to the next level of management or to an HR Business Partner[7].

6.2 Grievances Related to Harassment, Bullying, or Discrimination

Allegations of harassment, bullying, or discrimination are taken extremely seriously. These grievances will always be handled through the formal procedure and will be investigated by specially trained HR professionals or external investigators if necessary. These investigations are governed by the company's separate Anti-Harassment and Equal Employment Opportunity policies.

6.3 Grievances of a Collective Nature

If a group of employees shares the same grievance, they may submit it collectively. One or two employees should be nominated as spokespersons for the group to liaise with HR throughout the process.

6.4 Distinguishing Grievances from Whistleblowing

A grievance typically relates to an employee's personal circumstances or treatment. A whistleblowing complaint involves reporting information that is in the public interest, such as criminal activity, corruption, or a serious danger to public health and safety. Whistleblowing complaints should be raised under the company's separate Whistleblower Policy, which offers specific legal protections.

7.0 Confidentiality and Data Protection

7.1 Maintaining Confidentiality

All individuals involved in a grievance procedure—the grievant, the respondent, witnesses, managers, and HR—are required to maintain strict confidentiality. Breaches of confidentiality can undermine the integrity of the process and may result in disciplinary action.

7.2 Data Protection and Record-Keeping

HR will create and maintain a confidential case file for each formal grievance. This file will be stored securely and separately from the employee's main personnel file. Access will be restricted to authorized HR and legal personnel. All records will be managed in compliance with applicable data protection laws.

8.0 Policy Review and Training

8.1 Policy Review

This policy will be reviewed by the HR department every two years, or more frequently if required by changes in legislation, to ensure it remains effective and compliant[2].

8.2 Training and Awareness

All managers will receive mandatory training on this policy and on their role in handling workplace concerns effectively and empathetically. The policy will be made available to all employees via the company's intranet, and it will be covered during new hire orientation[2].

9.0 Frequently Asked Questions (FAQs)

Q1: Do I have to talk to my manager before filing a formal grievance?
A: While we strongly encourage informal resolution first, you are not required to speak with your manager if you are uncomfortable doing so or if your grievance is about them. In that case, you can go directly to HR or a more senior manager.

Q2: Will filing a grievance negatively impact my career?
A: Absolutely not. Our non-retaliation policy is strictly enforced. It is a serious violation of company policy to penalize an employee in any way for raising a concern in good faith.

Q3: Can I remain anonymous when I file a grievance?
A: Due to the need to conduct a thorough investigation, it is generally not possible to remain completely anonymous when filing a formal grievance. However, we will maintain confidentiality

to the greatest extent possible. For anonymous reporting of certain issues, please refer to our Whistleblower Policy.

Q4: How long does the formal grievance process take?
A: We aim to complete the entire formal process, from filing to decision, within approximately 25-30 working days. However, complex cases may take longer.

Q5: Who can I bring with me to a grievance or appeal meeting?
A: You have the right to be accompanied by a single individual who is a current work colleague or a certified trade union representative. They are there to support you and are not permitted to answer questions on your behalf.

Q6: What if my grievance is not upheld?
A: If your grievance is not upheld, HR will still offer support and may suggest mediation or other actions to help repair working relationships and move forward constructively.

Q7: What is the difference between a grievance and just a complaint?
A: A complaint is any expression of dissatisfaction. A grievance is a formal complaint that is submitted in writing and triggers the formal procedure outlined in this policy.

Q8: Can I withdraw my grievance after I have filed it?
A: Yes, you can withdraw your grievance at any stage by notifying HR in writing. However, in cases involving serious allegations (e.g., harassment), the company may be obligated to continue the investigation regardless.

10.0 Grievance Form

[A link to the official, downloadable Grievance Form would be included here on a live HR portal.]

[Resilience X] - Formal Grievance Form

CONFIDENTIAL

Please use this form to submit a formal grievance. Provide as much detail as possible. Once complete, please submit this form to the Human Resources department.

- **Employee Name:**
- **Employee ID:**
- **Department:**
- **Manager's Name:**
- **Date of Submission:**

Section 1: Details of the Grievance

- **Please provide a detailed description of your grievance. Include specific facts, dates, times, and locations.**
    - _____
- **Please list the names and titles of any other individuals involved.**
    - _____

- **Please list the names of any witnesses to the events described.**
  - _____

Section 2: Informal Resolution Attempts

- **Please describe any steps you have already taken to resolve this matter informally.**
  - _____

Section 3: Desired Resolution

- **Please describe the outcome you are seeking to resolve this grievance.**
  - _____

Section 4: Supporting Documentation

- **Please list any documents (e.g., emails, reports) you are providing to support your grievance.**

Employee Signature: _____
Date: _____

11.0 Revision History

Version	Date of Revision	Summary of Changes	Approved By
1.0	Jan 1, 2024	Initial release of the comprehensive Grievance and Escalation Procedure.	Chief Human Resources Officer

1. https://www.aihr.com/blog/grievance-policy-template/
2. https://www.rippling.com/blog/grievance-procedure
3. https://factohr.com/policy/employee-grievance/
4. https://www.chrmp.com/grievance-handling-procedure-2/
5. https://ipgcl-ppcl.gov.in/Grievance-B.pdf
6. https://www.davidsonmorris.com/grievance-procedure/
7. https://praxis42.com/resources/hr/grievance-procedure-sample/
8. https://www.aihr.com/blog/grievance-procedure/
9. https://corporate.arcelormittal.com/media/l00fwuhc/20240805-grievance-procedure-015-clean-6.pdf
10. https://blog.screendesk.io/escalation-procedure-example/
11. https://www.greythr.com/downloadable-resource/grievance-policy/
12. https://nisvib.in/wp-content/uploads/2022/05/NISV-Employee-Grievance-Policy.pdf
13. https://www.lawinsider.com/clause/escalation-procedure

14. https://www.acas.org.uk/grievance-procedure-step-by-step
15. https://www.startuphrtoolkit.com/employee-grievance-policy/
16. https://www.chrmp.com/grievance-handling-procedure/
17. https://www.supportlogic.com/resources/blog/the-escalation-matrix-best-practices-and-going-beyond/
18. https://employmenthero.com/resources/grievance-handling-policy/
19. https://www.tal.sg/tafep/employment-practices/grievance-handling
20. https://blog.screendesk.io/escalation-procedures-template/